

May 22, 2026

Representative Neal Foster
Co-Chair of the House Finance Committee
State Capitol Room 511
Juneau, AK 99801

Representative Andy Josephson
Co-Chair of the House Finance Committee
State Capitol Room 505
Juneau, AK 99801

Representative Calvin Schrage
Co-Chair of the House Finance Committee
State Capitol Room 410
Juneau, AK 99801

Representative Andi Story
State Capitol Room 403
Juneau, AK 99801

RE: Ad Trade Letter in Opposition to Alaska HB 367

Dear Co-Chairs Foster, Josephson, Schrage, and Representative Story:

On behalf of the advertising industry, we respectfully oppose HB 367 in its current form, and we provide this letter to express our non-exhaustive list of concerns about this legislation.¹ We and the companies we represent, many of whom do substantial business in Alaska, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. We urge the House Finance Committee to allow the ongoing federal effort to enact a preemptive national privacy law to advance through the legislative process instead of adopting a privacy law that is out-of-step with that federal proposal and the vast majority of omnibus privacy laws across the states. In the alternative, should the Alaska legislature choose to proceed with state privacy legislation at this time, we ask the Committee to harmonize HB 367 with the consensus approach to data privacy adopted in other states, such as Nebraska and Oklahoma.²

If enacted as presently drafted, HB 367 would make Alaska's approach to privacy an outlier in ways that would harm consumers and businesses of all sizes. For example, HB 367's duty of loyalty provisions diverge sharply from the prevailing state framework by prohibiting controllers from collecting, processing or transferring personal data in ways that may "[conflict] with the best interests of an individual" or "result in a disproportionate risk to an individual."³ By departing so significantly from established norms with these broad and vague mandates, HB 367 could cast doubt on the permissibility of routine data processing that underpins consumer benefits and everyday economic activity because of a vague "duty of loyalty" requirement.

Furthermore, the bill as drafted would provide broad rulemaking authority to the Alaska Attorney General.⁴ Such expansive rulemaking authority risks driving Alaska's privacy framework even further out-of-step with the predominant approach adopted in other states, the overwhelming majority of which have not vested comparable rulemaking authority in their attorneys general. Granting expansive regulatory authority would also risk creating confusion

¹ Alaska HB 367 (34th Leg.), located [here](#) (hereinafter, "HB 367").

² See Neb. Rev. Stat. § 87-1101 et. seq.; Oklahoma SB 546 (2025-2026 Sess.) (effective Jan. 1, 2027).

³ HB 367 at Sec. 45.48.812.

⁴ Id. at Sec. 45.48.870.

and frustration among consumers and businesses alike, increasing compliance costs without providing corresponding consumer benefits.

Given the ongoing federal privacy discussions, Alaska should avoid adopting unique or divergent privacy provisions that would create unnecessary uncertainty and additional compliance burdens. If Alaska chooses to pursue its own state privacy law, instead of proposing to enact novel or untested privacy mandates, we ask the legislature to focus its efforts on harmonizing its privacy law with the approach to privacy in other states. A patchwork of differing privacy standards across the states would create significant costs for businesses and consumers alike. Efforts to harmonize state privacy legislation with existing privacy laws are critical to minimizing costs of compliance and fostering similar privacy rights for consumers no matter where they live.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for nearly 20 percent of total U.S. gross domestic product ("GDP") in 2024.⁵ By one estimate, approximately 16.4% of Alaska jobs in 2024 were related to the ad-subsidized Internet, a share projected to increase to 17.9% by 2029.⁶ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on the points we discuss in this letter.

* * *

Thank you in advance for your consideration of this letter.

Sincerely,

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⁵ S&P Global, THE ECONOMIC IMPACT OF ADVERTISING ON THE US ECONOMY, 2024-2029 at 4 (Aug. 2025), located at https://theadcoalition.com/wp-content/uploads/2025/08/TAC_SP-Global-Final-Report_August-2025.pdf.

⁶ *Id.* at 15-16.